

**CV-24-009853 JONES, LATISHA MONIQUE vs KAISER FOUNDATION
HOSPITALS – a) Plaintiff’s Motion to Compel Further Responses to
Plaintiff’s Request for Production of Documents (Set Three) - GRANTED in
part; b) Defendant’s Motion for Summary Judgment or in the Alternative
Summary Adjudication – GRANTED in part; DENIED in part.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a) Defendant's response to the subject request is deficient, entitling Plaintiff to a further response thereto. (Code Civ. Proc. § 2031.310(a).) Admissibility at trial is not the test for discoverability. Here, Plaintiff has demonstrated that the sought-after materials may be relevant or admissible on Plaintiff's FEHA claims, and Defendant's objections and unilaterally imposed time parameters are not well-taken. Specifically, the Court notes that Defendant's arguments against providing the subject information rely primarily on persuasive authorities, which fail to address the issue in the context of discovery. (However, Plaintiff's claim that unpublished federal cases may not be cited in California courts is not well-taken.) The Court makes no express or implied findings on admissibility at trial. For the reasons set forth below, the Court DENIES the motion for summary judgment and GRANTS in part and DENIES in part the alternative request for summary adjudication. b) Summary judgment is DENIED. Summary Adjudication is GRANTED in part and DENIED in part. FACTUAL SUMMARY Plaintiff operated a personal interior design/property business while working for Kaiser. Company assets were used by her in doing so. She also complained about a monkey image which she alleged was racist and reported it to human resources. While out on medical leave, she was fired. She claims the firing was pretextual. GOVERNING LEGAL STANDARDS A. Summary Judgment or Adjudication in General A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one sufficient to support the position of the party in question." (Id. at p. 851.) A defendant meets their burden of showing that a cause of action has no merit if the party shows that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c(p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff, who must show that "a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.) "Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party's right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party's are liberally construed." (Garcia v. World Savings, FSB (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (Barber v. Marina Sailing, Inc. (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant's burden. (Anderson v. Metalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 297.) In addition to moving for summary judgment, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).) B. Shifting Burdens for FEHA and Labor Code Claims FEHA retaliation claims are analyzed under the McDonnell Douglas burden-shifting framework. First, the plaintiff bears the burden of establishing a prima facie case by showing that she engaged in protected activity, suffered an adverse employment action, and that a causal connection exists between the two. If the plaintiff meets this initial burden, the employer must articulate a legitimate, nonretaliatory reason for the adverse action. The burden then shifts back to the plaintiff to produce evidence that the employer's stated reason is a pretext for retaliation. Throughout this analysis, the ultimate burden of persuasion remains with the plaintiff. (See McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792, 802, as applied to FEHA retaliation claims in California; Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042–1044.) For Plaintiff's retaliation claim under Labor Code sections 1102.5 and 98.6, the burden-shifting framework articulated in Lawson v. PPG Architectural Finishes, Inc. applies. Under this standard, Plaintiff bears the initial burden of proving by a preponderance of the evidence that protected activity was a contributing factor in the employer's decision to take an adverse employment action. If a plaintiff meets that burden, the burden shifts to the employer to demonstrate by clear and convincing evidence that it would have taken the same action for legitimate, independent reasons even if the plaintiff had not engaged in protected activity. The ultimate burden of persuasion remains with the employer at the second step. (Lawson v. PPG

Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 718–721.) OBJECTIONS TO EVIDENCE The Court rules as follows on the parties' objections to evidence. Plaintiff's objections: SUSTAINED: 1, 2, 3, 4 Defendants' objections: OVERRULED: 1, 2, 3, 4, 5, 7, 8, 9, 15. I note that hearsay is offered for the proof of the matter asserted and statements by party-opponents are exceptions to the rule. SUSTAINED: 6, 10, 11 SUSTAINED in part: 12, 13, 14: Observed workplace actions and practices are admissible. OBJECTIONS TO PLAINTIFF'S SEPARATE STATEMENT The Court declines Defendants' invitation to strike the Plaintiff's separate statement. MOTION FOR SUMMARY JUDGMENT As explained below, not all of Defendants' arguments are successful, and many of Plaintiff's causes of action survive this motion. Therefore, the request for summary judgment is DENIED. SUMMARY ADJUDICATION: ISSUE NO. 1: Plaintiff's first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action and prayer for punitive damages all fail as a matter of law as to KFHP because KFHP never employed plaintiff and cannot be held liable to her. The record is largely undisputed that KFHP did not employ Plaintiff, did not control her day-to-day work, and did not make the termination decision. (Defs.' UMF Nos. 15-16, 62-63.) Plaintiff argues that summary adjudication of this issue should be denied on the theory of integrated enterprise. To determine whether two business entities are an integrated enterprise, courts analyze the following four factors: interrelation of operations, common management, centralized control of labor relations, and common ownership. (Laird v. Capital Cities/ABC, Inc. (1998) 68 Cal.App.4th 727, 737.) "Although courts consider the four factors together, they often deem centralized control of labor relations the most important." (Id. at p. 738.) "To make a sufficient showing of 'interrelation of operations' on summary judgment, the plaintiff must do more than merely show that officers of the subsidiary report to the parent corporation or that the parent benefits from the subsidiary's work. What the plaintiff must show, rather, is that the parent has exercised control " 'to a degree that exceeds the control normally exercised by a parent corporation.' [Citation.]" (Ibid.) Plaintiff's opposing evidence focuses on KFHP-employed HR personnel providing advice and conducting investigations. (See Pl.'s Resp. to UMF Nos. 15-16, 62-63.) However, without proof of authority over hiring, firing, or discipline, the type of evidence on which Plaintiff is relying is typically insufficient to establish employer liability under FEHA or the Labor Code. (See Vernon v. State of California (2004) 116 Cal.App.4th 114, 124–125 [entity that provides personnel guidance or participates in employment-related processes, but lacks authority to hire, fire, or discipline, is not an employer under FEHA].) While Plaintiff cites shared policies and HR involvement, that evidence goes more to coordination than to centralized control of labor relations; under controlling authority, this is not enough. Accordingly, summary adjudication of Issue No. 1 is GRANTED. ISSUE NO. 2: Plaintiff's first cause of action for retaliation under Labor Code sections 1102.5-1105 fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show she engaged in any actionable protected activity, nor can she show retaliatory animus or a causal connection between any reported protected activity and an alleged adverse action. The Court uses the Lawson standard. Defendants' contention to the contrary notwithstanding, there is no real dispute that Plaintiff engaged in protected activity: she reported the offensive monkey picture to Ms. Douglas and then restated the same to Ms. Sapin during a September 2022 interview. (See UMF Nos. 49-50; OMF Nos. 15, 30-39, 40, 48-52; Pl.'s Opp, at pp. 4-5.) Defendants' argument that Douglas did not qualify as a supervisor is unpersuasive. While there is no certain evidence presented that Plaintiff's protected activity was a contributing factor to her termination, a jury could infer from the timeline plus the comparator evidence (see OMF Nos. 96-104) that Jones was treated differently than other employees because of her participation in discrimination complaints and that the protected activity was therefore a contributing factor. The burden shifts to Defendants to show by clear and convincing evidence that Defendants would have taken the same action for legitimate, independent reasons. (See Lawson, supra.) Defendants do not meet this burden. Accordingly, summary adjudication of this issue is DENIED. ISSUE NO. 3: Plaintiff's second cause of action for retaliation under Labor Code section 98.6 fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show she engaged in any actionable protected activity, nor can she show retaliatory animus or a causal connection between any reported protected activity and an alleged adverse action. The Lawson standard also applies to this cause of action, and for the reasons set forth above, summary adjudication is also DENIED. ISSUE NO. 4: Plaintiff's fourth cause of action for retaliation under FEHA fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show she engaged in any actionable protected activity, nor can she show retaliatory animus or a causal connection between any reported protected activity and an alleged adverse action. As discussed above, Plaintiff engaged in protected activity. (See UMF Nos. 49*-50*; OMF Nos. 15, 30-39, 40, 48-52; Pl.'s Opp, at pp. 4-5.) Nor is there a dispute that KFHP terminated her for a facially legitimate reason. (See UMF No. 37.) So, the burden switches back to the Plaintiff to produce substantial, admissible evidence that the employer's stated reason is a pretext for retaliation. As previously noted, a jury could infer from the timeline plus the comparator evidence (see OMF Nos. 96-104) that Jones was treated differently than other employees because of her participation in discrimination complaints. Viewing the situation in the light most favorable to the Plaintiff, summary adjudication is DENIED. ISSUE NO. 5: Plaintiff's fifth cause of action for retaliation under CFRA fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show retaliatory animus or a causal connection between any actionable reported protected activity and an alleged adverse action. The McDonnell Douglas standard applies to a CFRA retaliation claim. For the reasons stated above under Issue No. 4, the request for summary adjudication of this issue is DENIED. ISSUE NO. 6: Plaintiff's first, second, fourth, and fifth causes of action for retaliation fail as a matter of law because there were legitimate, nonretaliatory reasons for each alleged adverse employment action. Summary adjudication of Issue No. 6 is DENIED. This issue is duplicative of issues presented above.. As Plaintiff notes on page 14 of her opposition, a FEHA retaliation claim requires that "(1) the plaintiff establish a prima facie case of retaliation, (2) the defendant articulate a legitimate nonretaliatory explanation for its acts, and (3) the plaintiff show that the defendant's proffered explanation is merely

a pretext for the illegal termination.” (Flait v. North American Watch Corp. (1992) 3 Cal.App.4th 467, 476, reh’g denied and opinion modified (Mar. 5, 1992).) As Defendants have articulated this issue, the third element is excluded. ISSUE NO. 7: Plaintiff’s eighth cause of action for discrimination under FEHA fails as a matter of law because plaintiff cannot establish a prima facie case of discrimination. Specifically, plaintiff cannot show discriminatory animus, nor a causal connection between any alleged disability/medical condition and an alleged adverse action. Summary adjudication is DENIED. Defendant has successfully shifted the burden to Plaintiff. Sandell v. Taylor-Listug (2010) 188 Cal.App.4th 297, 310, permits the Plaintiff to make this determination by inference. This is a close case, but given the timing of the firing and Kaiser’s own policies, the Court finds that sufficient inference has been made. ISSUE NO. 8: Plaintiff’s eighth cause of action for discrimination under FEHA also fails as a matter of law because there were legitimate, nonretaliatory reasons for each alleged adverse employment action. Like Issue No. 6, Issue No. 8 fails to articulate all the elements for a FEHA claim and is therefore DENIED. ISSUE NO. 9: Plaintiff’s third cause of action for wrongful termination fails as a matter of law because it is derivative of plaintiff’s retaliation and discrimination claims, and thus fails for the same reasons her retaliation and discrimination claims fail. Because retaliation and discrimination claims have in fact survived summary adjudication summary adjudication of Issue No. 9 is DENIED. ISSUE NO. 10: Plaintiff’s sixth cause of action for failure to make reasonable accommodation in violation of FEHA fails as a matter of law because plaintiff was granted all requests for reasonable accommodation for her alleged disability. The following facts are undisputed: Plaintiff’s role involved IT support responsibilities (UMF No. 5); her job required in-person work (UMF No. 6); Plaintiff sometimes needed to be on her feet up to 75% of the day (UMF No. 7); Plaintiff took several medical leaves (UMF No. 38); all leave requests were granted (UMF No. 39); and Plaintiff was able to extend her leave from December 27, 2022, to August 7, 2023 (UMF No. 40). UMF Nos. 38-40 indicate that Plaintiff was provided with reasonable accommodation. Plaintiff argues on page 17 of her opposition that Kaiser failed to reasonably accommodate her, but the points she flags go to discrimination, not to failure to reasonably accommodate. For the foregoing reasons, summary adjudication of this issue is GRANTED. ISSUE NO. 11: Plaintiff’s seventh cause of action for failure to engage in the interactive process in violation of FEHA fails as a matter of law because plaintiff was granted all requests for reasonable accommodation for her alleged disability. For the same reasons that summary adjudication of Issue No. 10 is GRANTED, summary adjudication of Issue No. 11 is GRANTED as well. ISSUE NO. 12: Plaintiff’s ninth cause of action for failure to provide a work environment free from discrimination, harassment, and/or retaliation fails as a matter of law because plaintiff cannot establish a viable claim for discrimination, harassment, or retaliation under FEHA. Because FEHA claims have survived, the ninth cause of action survives as well. Thus, summary adjudication is DENIED. ISSUE NO. 13: Plaintiff’s ninth cause of action for failure to provide a work environment free from discrimination, harassment, and/or retaliation also fails as a matter of law because plaintiff cannot identify any reasonable step that defendants should have taken – but failed to take – to avoid conduct prohibited by FEHA. There is ample evidence indicating that Plaintiff did in fact identify reasonable steps that KFH should have taken but failed to take. For example, Plaintiff contends Defendants should have conducted a more rigorous investigation of the monkey picture incident (see UMF Nos. 52-53); that Sapin made condescending remarks (which would indicate a lack of sensitivity training) (UMF No. 58); that Jackson failed to act on Williams’ complaint about racist conduct by Perez (which again indicates a lack of training) (OMF No. 15); and that Defendants should have reexamined the evidence on which her termination was based given the noticeable flaws in the methodology (UMF No. 23). Accordingly, summary adjudication of this issue is DENIED. ISSUE NO. 14: Plaintiff’s tenth cause of action for intentional infliction of emotional distress fails as a matter of law because the conduct at issue is neither extreme nor outrageous. Summary adjudication is DENIED. As Kaiser concedes, this is derivative of other, surviving claims. ISSUE NO. 15: Plaintiff’s tenth cause of action for intentional infliction of emotional distress also fails as a matter of law because there is no evidence that defendants intended to cause plaintiff severe or extreme emotional distress or acted with reckless disregard of the probability that plaintiff would suffer severe or extreme emotional distress. Outside of the unique legal structures imposed on FEHA and Labor Code claims, a defendant who is contending that a plaintiff lacks sufficient evidence must provide affirmative proof that he or she cannot satisfy her burden; mere argument is not enough. (See Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854–855, as modified (July 11, 2001) [“Summary judgment law in this state, however, continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence. In this particular at least, it still diverges from federal law. For the defendant must ‘support []’ the ‘motion’ with evidence including ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice’ must or may ‘be taken.’ (Code Civ. Proc., § 437c, subd. (b).) The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing. But, as Fairbank v. Wunderman Cato Johnson (9th Cir.2000) 212 F.3d 528 concludes, the defendant must indeed present “evidence”: Whereas, under federal law, ‘pointing out through argument’ (id. at p. 532) may be sufficient (see generally Schwarzer et al., Cal. Practice Guide: Federal Civil Procedure Before Trial (The Rutter Group 2001) ¶¶ 14:137 to 14:137.6, pp. 14-32 to 14-33 [setting out the ‘disagree[ment]’ of the ‘[c]ourts’ on the issue]), under state law, it is not.”] [footnotes omitted; emphasis added].) Here, Defendants do not make any effort to show admissions by Plaintiff or that she has been unable to discover any evidence to support her position on this issue. For this reason, Defendants have failed to meet their initial burden of proof, and summary adjudication of this issue is DENIED. ISSUE NO. 16: Plaintiff’s tenth cause of action for intentional infliction of emotional distress also fails as a matter of law because there is no evidence that plaintiff suffered severe or extreme emotional distress. For the reasons stated above under Issue No. 15, summary adjudication of this issue is

DENIED. ISSUE NO. 17: Plaintiff's prayer for punitive damages fails as a matter of law because plaintiff cannot meet her burden under Civil Code section 3294, subdivision (b), by producing clear and convincing evidence of conduct by KFH or KFHP that constitutes malice, oppression, or fraud. For the reasons stated under Issue No. 15, summary adjudication of this issue is DENIED. ISSUE NO. 18: Plaintiff's prayer for punitive damages also fails as a matter of law because plaintiff cannot meet her burden under Civil Code section 3294, subdivision (b), by producing clear and convincing evidence that any conduct that could give rise to punitive damages liability was committed, authorized, or ratified by an officer, director, or managing agent of defendants. Summary adjudication is GRANTED. UMF Nos. 71-73 indicate that Tony Jackson, Debbie Sapin, and Wilmer Perez—i.e., the chief actors in this controversy—were not officers, directors, or managing agents of KFH and were not involved in policymaking. The connections to Adao and Newkirk are speculative and OMF 15, 56, and 63 are substantially below the standard required to make this showing. Defendant to prepare an order consistent with this ruling.

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CV-24-009853 – JONES, LATISHA MONIQUE vs KAISER FOUNDATION HOSPITALS – a) Plaintiff's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents (Set Three) - GRANTED in part; b) Defendant's Motion for Summary Judgment or in the Alternative Summary Adjudication – GRANTED in part; DENIED in part.

a) Defendant's response to the subject request is deficient, entitling Plaintiff to a further response thereto. (Code Civ. Proc. § 2031.310(a).)

Admissibility at trial is not the test for discoverability. Here, Plaintiff has demonstrated that the sought-after materials may be relevant or admissible on Plaintiff's FEHA claims, and Defendant's objections and unilaterally imposed time parameters are not well-taken. Specifically, the Court notes that Defendant's arguments against providing the subject information rely primarily on persuasive authorities, which fail to address the issue in the context of discovery. (However, Plaintiff's claim that unpublished federal cases may not be cited in California courts is not well-taken.)

The Court makes no express or implied findings on admissibility at trial.

For the reasons set forth below, the Court DENIES the motion for summary judgment and GRANTS in part and DENIES in part the alternative request for summary adjudication.

b) Summary judgment is DENIED. Summary Adjudication is GRANTED in part and DENIED in part.

FACTUAL SUMMARY

Plaintiff operated a personal interior design/property business while working for Kaiser. Company assets were used by her in doing so.

She also complained about a monkey image which she alleged was racist and reported it to human resources. While out on medical leave, she was fired. She claims the firing was pretextual.

GOVERNING LEGAL STANDARDS

A. Summary Judgment or Adjudication in General

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima

facie showing is one sufficient to support the position of the party in question.” (Id. at p. 851.) A defendant meets their burden of showing that a cause of action has no merit if the party shows that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c(p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff, who must show that “a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party’s right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party’s are liberally construed.” (Garcia v. World Savings, FSB (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (Barber v. Marina Sailing, Inc. (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant’s burden. (Anderson v. Metalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 297.)

In addition to moving for summary judgment, “[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.” (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).)

B. Shifting Burdens for FEHA and Labor Code Claims

FEHA retaliation claims are analyzed under the McDonnell Douglas burden-shifting framework. First, the plaintiff bears the burden of establishing a prima facie case by showing that she engaged in protected activity, suffered an adverse employment action, and that a causal connection exists between the two. If the plaintiff meets this initial burden, the employer must articulate a legitimate, nonretaliatory reason for the adverse action. The burden then shifts back to the plaintiff to produce evidence that the employer’s stated reason is a pretext for retaliation. Throughout this analysis, the ultimate burden of persuasion remains with the plaintiff. (See McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792, 802, as applied to FEHA retaliation claims in California; Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042–1044.)

For Plaintiff’s retaliation claim under Labor Code sections 1102.5 and 98.6, the burden-shifting framework articulated in Lawson v. PPG Architectural Finishes, Inc. applies. Under this standard, Plaintiff bears the initial burden of proving by a preponderance of the evidence that protected activity was a contributing factor in the employer’s decision to take an adverse employment action. If a plaintiff meets that burden, the burden shifts to the employer to demonstrate by clear and convincing evidence that it would have taken the same action for legitimate, independent reasons even if the plaintiff had not engaged in protected activity. The ultimate burden of persuasion remains with the employer at the second step. (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 718–721.)

OBJECTIONS TO EVIDENCE

The Court rules as follows on the parties’ objections to evidence.

Plaintiff’s objections:

SUSTAINED: 1, 2, 3, 4

Defendants’ objections:

OVERRULED: 1, 2, 3, 4, 5, 7, 8, 9, 15. I note that hearsay is offered for the proof of the matter asserted and statements by party-opponents are exceptions to the rule.

SUSTAINED: 6, 10, 11

SUSTAINED in part: 12, 13, 14: Observed workplace actions and practices are admissible.

OBJECTIONS TO PLAINTIFF'S SEPARATE STATEMENT

The Court declines Defendants' invitation to strike the Plaintiff's separate statement.

MOTION FOR SUMMARY JUDGMENT

As explained below, not all of Defendants' arguments are successful, and many of Plaintiff's causes of action survive this motion. Therefore, the request for summary judgment is DENIED.

SUMMARY ADJUDICATION:

ISSUE NO. 1: Plaintiff's first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action and prayer for punitive damages all fail as a matter of law as to KFHP because KFHP never employed plaintiff and cannot be held liable to her.

The record is largely undisputed that KFHP did not employ Plaintiff, did not control her day-to-day work, and did not make the termination decision. (Defs.' UMF Nos. 15-16, 62-63.)

Plaintiff argues that summary adjudication of this issue should be denied on the theory of integrated enterprise.

To determine whether two business entities are an integrated enterprise, courts analyze the following four factors: interrelation of operations, common management, centralized control of labor relations, and common ownership. (Laird v. Capital Cities/ABC, Inc. (1998) 68 Cal.App.4th 727, 737.) "Although courts consider the four factors together, they often deem centralized control of labor relations the most important." (Id. at p. 738.) "To make a sufficient showing of 'interrelation of operations' on summary judgment, the plaintiff must do more than merely show that officers of the subsidiary report to the parent corporation or that the parent benefits from the subsidiary's work. What the plaintiff must show, rather, is that the parent has exercised control " 'to a degree that exceeds the control normally exercised by a parent corporation.' [Citation.]" (Ibid.)

Plaintiff's opposing evidence focuses on KFHP-employed HR personnel providing advice and conducting investigations. (See Pl.'s Resp. to UMF Nos. 15-16, 62-63.) However, without proof of authority over hiring, firing, or discipline, the type of evidence on which Plaintiff is relying is typically insufficient to establish employer liability under FEHA or the Labor Code. (See Vernon v. State of California (2004) 116 Cal.App.4th 114, 124–125 [entity that provides personnel guidance or participates in employment-related processes, but lacks authority to hire, fire, or discipline, is not an employer under FEHA].)

While Plaintiff cites shared policies and HR involvement, that evidence goes more to coordination than to centralized control of labor relations; under controlling authority, this is not enough. Accordingly, summary adjudication of Issue No. 1 is GRANTED.

ISSUE NO. 2: Plaintiff's first cause of action for retaliation under Labor Code sections 1102.5-1105 fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show she engaged in any actionable protected activity, nor can she show retaliatory animus or a causal connection between any reported protected activity and an alleged adverse action.

The Court uses the Lawson standard.

Defendants' contention to the contrary notwithstanding, there is no real dispute that Plaintiff engaged in protected activity: she reported the offensive monkey picture to Ms. Douglas and then restated the same to Ms. Sapin during a September 2022 interview. (See UMF Nos. 49-50; OMF Nos. 15, 30-39, 40, 48-52; Pl.'s Opp, at pp. 4-5.) Defendants' argument that Douglas did not qualify as a supervisor is unpersuasive.

While there is no certain evidence presented that Plaintiff's protected activity was a contributing factor to her termination, a jury could infer from the timeline plus the comparator evidence (see OMF Nos. 96-104) that Jones was treated differently than other employees because of her participation in discrimination complaints and that the protected activity was therefore a contributing factor.

The burden shifts to Defendants to show by clear and convincing evidence that Defendants would have taken the same action for legitimate, independent reasons. (See Lawson, supra.) Defendants do not meet this burden. Accordingly, summary adjudication of this issue is DENIED.

ISSUE NO. 3: Plaintiff's second cause of action for retaliation under Labor Code section 98.6 fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show she engaged in any actionable protected activity, nor can she show retaliatory animus or a causal connection between any reported protected activity and an alleged adverse action.

The Lawson standard also applies to this cause of action, and for the reasons set forth above, summary adjudication is also DENIED.

ISSUE NO. 4: Plaintiff's fourth cause of action for retaliation under FEHA fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show she engaged in any actionable protected activity, nor can she show retaliatory animus or a causal connection between any reported protected activity and an alleged adverse action.

As discussed above, Plaintiff engaged in protected activity. (See UMF Nos. 49*-50*; OMF Nos. 15, 30-39, 40, 48-52; Pl.'s Opp, at pp. 4-5.) Nor is there a dispute that KFH terminated her for a facially legitimate reason. (See UMF No. 37.) So, the burden switches back to the Plaintiff to produce substantial, admissible evidence that the employer's stated reason is a pretext for retaliation. As previously noted, a jury could infer from the timeline plus the comparator evidence (see OMF Nos. 96-104) that Jones was treated differently than other employees because of her participation in discrimination complaints.

Viewing the situation in the light most favorable to the Plaintiff, summary adjudication is DENIED.

ISSUE NO. 5: Plaintiff's fifth cause of action for retaliation under CFRA fails as a matter of law because plaintiff cannot establish a prima facie case of retaliation. Specifically, plaintiff cannot show retaliatory animus or a causal connection between any actionable reported protected activity and an alleged adverse action.

The McDonnell Douglas standard applies to a CFRA retaliation claim. For the reasons stated above under Issue No. 4, the request for summary adjudication of this issue is DENIED.

ISSUE NO. 6: Plaintiff's first, second, fourth, and fifth causes of action for retaliation fail as a matter of law because there were legitimate, nonretaliatory reasons for each alleged adverse employment action.

Summary adjudication of Issue No. 6 is DENIED. This issue is duplicative of issues presented above.. As Plaintiff notes on page 14 of her opposition, a FEHA retaliation claim requires that "(1) the plaintiff establish a prima facie case of retaliation, (2) the defendant articulate a legitimate nonretaliatory explanation for its acts, and (3) the plaintiff show that the defendant's proffered explanation is merely a pretext for the illegal termination." (Flait v. North American Watch Corp. (1992) 3 Cal.App.4th 467, 476, reh'g denied and opinion modified (Mar. 5, 1992).) As Defendants have articulated this issue, the third element is excluded.

ISSUE NO. 7: Plaintiff's eighth cause of action for discrimination under FEHA fails as a matter of law because plaintiff cannot establish a prima facie case of discrimination. Specifically, plaintiff cannot show discriminatory animus, nor a causal connection between any alleged disability/medical condition and an alleged adverse action.

Summary adjudication is DENIED. Defendant has successfully shifted the burden to Plaintiff. Sandell v. Taylor-Listug (2010) 188 Cal.App.4th 297, 310, permits the Plaintiff to make this determination by inference. This is a close case, but given the timing of the firing and Kaiser's own policies, the Court finds that sufficient inference has been made.

ISSUE NO. 8: Plaintiff's eighth cause of action for discrimination under FEHA also fails as a matter of law because there were legitimate, nonretaliatory reasons for each alleged adverse employment action.

Like Issue No. 6, Issue No. 8 fails to articulate all the elements for a FEHA claim and is therefore DENIED.

ISSUE NO. 9: Plaintiff's third cause of action for wrongful termination fails as a matter of law because it is derivative of plaintiff's retaliation and discrimination claims, and thus fails for the same reasons her retaliation and discrimination claims fail.

Because retaliation and discrimination claims have in fact survived summary adjudication summary adjudication of Issue No. 9 is DENIED.

ISSUE NO. 10: Plaintiff's sixth cause of action for failure to make reasonable accommodation in violation of FEHA fails as a matter of law because plaintiff was granted all requests for reasonable accommodation for her alleged disability.

The following facts are undisputed: Plaintiff's role involved IT support responsibilities (UMF No. 5); her job required in-person work (UMF No. 6); Plaintiff sometimes needed to be on her feet up to 75% of the day (UMF No. 7); Plaintiff took several medical leaves (UMF No. 38); all leave requests were granted (UMF No. 39); and Plaintiff was able to extend her leave from December 27, 2022, to August 7, 2023 (UMF No. 40).

UMF Nos. 38-40 indicate that Plaintiff was provided with reasonable accommodation. Plaintiff argues on page 17 of her opposition that Kaiser failed to reasonably accommodate her, but the points she flags go to discrimination, not to failure to reasonably accommodate.

For the foregoing reasons, summary adjudication of this issue is GRANTED.

ISSUE NO. 11: Plaintiff's seventh cause of action for failure to engage in the interactive process in violation of FEHA fails as a matter of law because plaintiff was granted all requests for reasonable accommodation for her alleged disability.

For the same reasons that summary adjudication of Issue No. 10 is GRANTED, summary adjudication of Issue No. 11 is GRANTED as well.

ISSUE NO. 12: Plaintiff's ninth cause of action for failure to provide a work environment free from discrimination, harassment, and/or retaliation fails as a matter of law because plaintiff cannot establish a viable claim for discrimination, harassment, or retaliation under FEHA.

Because FEHA claims have survived, the ninth cause of action survives as well. Thus, summary adjudication is DENIED.

ISSUE NO. 13: Plaintiff's ninth cause of action for failure to provide a work environment free from discrimination, harassment, and/or retaliation also fails as a matter of law because plaintiff cannot identify any reasonable step that defendants should have taken – but failed to take – to avoid conduct prohibited by FEHA.

There is ample evidence indicating that Plaintiff did in fact identify reasonable steps that KFH should have taken but failed to take. For example, Plaintiff contends Defendants should have conducted a more rigorous investigation of the monkey picture incident (see UMF Nos. 52-53); that Sapin made condescending remarks (which would indicate a lack of sensitivity training) (UMF No. 58); that Jackson failed to act on Williams' complaint about racist conduct by Perez (which again indicates a lack of training) (OMF No. 15); and that Defendants should have reexamined the evidence on which her termination was based given the noticeable flaws in the methodology (UMF No. 23).

Accordingly, summary adjudication of this issue is DENIED.

ISSUE NO. 14: Plaintiff's tenth cause of action for intentional infliction of emotional distress fails as a matter of law because the conduct at issue is neither extreme nor outrageous.

Summary adjudication is DENIED.

As Kaiser concedes, this is derivative of other, surviving claims.

ISSUE NO. 15: Plaintiff's tenth cause of action for intentional infliction of emotional distress also fails as a matter of law because there is no evidence that defendants intended to cause plaintiff severe or extreme emotional distress or acted with reckless disregard of the probability that plaintiff would suffer severe or extreme emotional distress.

Outside of the unique legal structures imposed on FEHA and Labor Code claims, a defendant who is contending that a plaintiff lacks sufficient evidence must provide affirmative proof that he or she cannot satisfy her burden; mere argument is not enough. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854–855, as modified (July 11, 2001) [“Summary judgment law in this state, however, continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence. In this particular at least, it still diverges from federal law. For the defendant must ‘support []’ the ‘motion’ with evidence including ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice’ must or may ‘be taken.’ (Code Civ. Proc., § 437c, subd. (b).) The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing. But, as *Fairbank v. Wunderman Cato Johnson* (9th Cir.2000) 212 F.3d 528 concludes, the defendant must indeed present “evidence”: Whereas, under federal law, ‘pointing out through argument’ (id. at p. 532) may be sufficient (see generally *Schwarzer et al.*, Cal. Practice Guide: Federal Civil Procedure Before Trial (The Rutter Group 2001) ¶¶ 14:137 to 14:137.6, pp. 14-32 to 14-33 [setting out the ‘disagree[ment]’ of the ‘[c]ourts’ on the issue]), under state law, it is not.”] [footnotes omitted; emphasis added].)

Here, Defendants do not make any effort to show admissions by Plaintiff or that she has been unable to discover any evidence to support her position on this issue. For this reason, Defendants have failed to meet their initial burden of proof, and summary adjudication of this issue is DENIED.

ISSUE NO. 16: Plaintiff's tenth cause of action for intentional infliction of emotional distress also fails as a matter of law because there is no evidence that plaintiff suffered severe or extreme emotional distress.

For the reasons stated above under Issue No. 15, summary adjudication of this issue is DENIED.

ISSUE NO. 17: Plaintiff's prayer for punitive damages fails as a matter of law because plaintiff cannot meet her burden under Civil Code section 3294, subdivision (b), by producing clear and convincing evidence of conduct by KFH or KFHP that constitutes malice, oppression, or fraud.

For the reasons stated under Issue No. 15, summary adjudication of this issue is DENIED.

ISSUE NO. 18: Plaintiff's prayer for punitive damages also fails as a matter of law because plaintiff cannot meet her burden under Civil Code section 3294, subdivision (b), by producing clear and convincing evidence that any conduct that could give rise to punitive damages liability was committed, authorized, or ratified by an officer, director, or managing agent of defendants.

Summary adjudication is GRANTED.

UMF Nos. 71-73 indicate that Tony Jackson, Debbie Sapin, and Wilmer Perez—i.e., the chief actors in this controversy—were not officers, directors, or managing agents of KFH and were not involved in policymaking. The connections to Adao and Newkirk are speculative and OMF 15, 56, and 63 are substantially below the standard required to make this showing.

Defendant to prepare an order consistent with this ruling.